

McCarthyism's Effects on Academic Freedom and Higher Education

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Thesis:

Although universities were supposed to be bastions of free inquiry and open debate, McCarthyism revealed that American higher education's commitment to academic freedom was largely contingent on political acceptability. Through loyalty oath requirements, congressional investigations, and administrative capitulation, the anti-communist purges of 1947–1957 not only silenced dissenting professors but fundamentally restructured the relationship between the state and the university, producing a culture of institutional self-censorship whose effects on American intellectual life persisted long after McCarthy's fall.

Abstract

This paper focuses on how McCarthyism undermined academic freedom in American higher education during the Second Red Scare (1947–1957). Drawing on the scholarship of Ellen Schrecker, Paul Lazarsfeld and Wagner Thielens, Steve Batterson, and others, it argues that the anti-communist purges worked through three reinforcing mechanisms: the use of loyalty oaths imposed in more than twenty states that forced faculty to conform to political orthodoxy under threat of dismissal; the congressional and state investigations, especially of the House Un-American Activities Committee, which sought out professors based on their political affiliations rather than genuine security threats; and the widespread complicity of the university administrators who willingly enforced the purges to preserve their institutional reputations and government funding. Through case studies including the loyalty oath crisis at the University of California, the prosecution of mathematician Chandler Davis, the dismissal of faculty under New York's Feinberg Law, and drawing especially on Lazarsfeld and Thielens's survey of 2,451 faculty, this paper shows that the damage McCarthyism caused extended well beyond the hundreds of professors who were directly fired or blacklisted: the threat of investigation alone was enough to curb intellectual freedom across American academia. While the Supreme Court's decisions in *Sweezy v. New Hampshire* (1957) and *Keyishian v. Board of Regents* (1967) finally reinforced constitutional protections of academic freedom, this legal vindication came too late for the generation of scholars whose lives and scholarship were irretrievably lost, and the structural reforms it produced—strengthened tenure, enhanced faculty governance—have themselves eroded in the decades since. In light of renewed political pressures on American universities today, the protection of free inquiry and open debate remains an ongoing battle.

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Introduction

On the morning of May 10, 1954, in a federal courtroom in Lansing, Michigan, Representative Kit Clardy (R-MI), chairman of a House Un-American Activities Committee subcommittee, became visibly frustrated. For twenty-six questions in a row, the man sitting across from him—Chandler Davis, a twenty-seven-year-old mathematics instructor at the University of Michigan—refused to answer. Davis was not invoking the Fifth Amendment protection against self-incrimination, as most uncooperative witnesses did. Instead, he challenged the very authority of the committee by invoking the First Amendment. Davis said the committee's questions violated his freedom of speech and exceeded the constitutional limits imposed on Congress.¹ The University of Michigan suspended Davis that afternoon. He was later fired, convicted of contempt of Congress, and sentenced to six months in the Danbury Federal Penitentiary. Not a single American university would employ him. Davis spent the last six decades of his career at the University of Toronto, never holding an academic post again in the country of his birth.² Not until 1991—nearly four decades after his dismissal—did the University of Michigan belatedly acknowledge its error by initiating the annual Davis, Markert, Nickerson Lecture on Academic and Intellectual Freedom.

¹Chandler Davis, HUAC hearing testimony, Lansing, Michigan, May 10, 1954, quoted in Steve Batterson, *The Prosecution of Professor Chandler Davis: McCarthyism, Communism, and the Myth of Academic Freedom* (New York: Monthly Review Press, 2023), 67.

²Batterson, *Prosecution of Professor Chandler Davis*, 112–140.



Figure 1. Chandler Davis, mathematics instructor at the University of Michigan, ca. 1950s.

Source: Alchetron, “Chandler Davis,” <https://alchetron.com/Chandler-Davis>.

Davis's case was by no means unique. During the decade of intense anti-communist suspicion between 1947 and 1957—the Second Red Scare—colleges and universities throughout the United States succumbed to congressional investigations, state legislative committees, and loyalty oath requirements. Members of the faculty were interrogated about their political ideologies, were pressured to inform on colleagues, and were dismissed when they did not cooperate, even when they were protected by tenure. Ellen Schrecker, the most eminent historian of McCarthyism in American academia, estimates that hundreds of professors were summoned to testify before investigating committees, and that the resulting dismissals, resignations, and unofficial blacklisting drove a whole generation of left-oriented intellectuals out of higher education.³ The ensuing atmosphere of fear and self-censorship struck at the very foundation of what universities claimed to represent: the open and free pursuit of knowledge.

³Ellen W. Schrecker, *No Ivory Tower: McCarthyism and the Universities* (New York: Oxford University Press, 1986), 10.

McCarthyism undermined academic freedom through three primary mechanisms: the imposition of loyalty oaths that coerced professors into choosing between their principles and their livelihoods; congressional and state investigations that targeted professors for their political affiliations; and the collaboration of university administrators who cooperated with the investigating committees. Although some have argued that the risk of communist subversion justified these measures, the evidence demonstrates that the overwhelming majority of targeted professors posed no security threat and that the damage to American intellectual life far outweighed any hypothetical security gain. Ultimately, the excesses of this era provoked legal responses—most notably the Supreme Court's decisions in *Sweezy v. New Hampshire* (1957) and *Keyishian v. Board of Regents* (1967)—that strengthened constitutional protections for academic freedom, even as they arrived too late to repair the careers already destroyed.

Background

Origins of the Second Red Scare and McCarthyism

The Cold War, and with it the Second Red Scare, began with a cascade of foreign policy shocks. From 1945 to 1950, the Soviet Union expanded its domination of Eastern Europe; the Communist Revolution triumphed in China in October 1949; and the Soviets tested their first atomic bomb in August 1949, years before American intelligence had believed possible. The Korean War began in June 1950. At the same time, espionage cases helped to foster the belief that the American government was infested with communist agents: Alger Hiss was convicted of perjury related to espionage in January 1950, and Julius and Ethel Rosenberg were arrested in the summer of that year for allegedly passing nuclear secrets to the Soviet Union.⁴ Against this backdrop, Senator Joseph McCarthy (R-WI) emerged in February 1950 with a Wheeling, West

⁴Richard M. Fried, *Nightmare in Red: The McCarthy Era in Perspective* (New York: Oxford University Press, 1990), 3–30.

Virginia speech claiming to possess a list of communists working for the State Department.

While McCarthy himself targeted the federal government, his name soon became synonymous with a much wider campaign of anti-communist inquiry and suppression that extended to labor unions, the entertainment industry, and—crucially—higher education.⁵

The Principle of Academic Freedom Before McCarthyism

Academic freedom in American higher learning was formally codified in 1915 when the newly formed American Association of University Professors (AAUP) issued its Declaration on Academic Freedom and Academic Tenure. This document defined three basic freedoms: freedom of inquiry and research, freedom to teach in the classroom, and freedom of extramural expression. The tenure system, as Richard Hofstadter and Walter P. Metzger described in their landmark 1955 study, was the major institutional guarantee for these freedoms, and it ensured that professors would not be dismissed merely because their ideas were controversial.⁶ By the end of the 1940s, these principles had been well accepted in theory but had never been the subject of sustained political pressure from the federal government. The AAUP's 1940 Statement of Principles on Academic Freedom and Tenure, endorsed by over 150 scholarly associations, represented a strong professional consensus. McCarthyism would represent the most sustained challenge to these principles since the founding of the AAUP, and the academy's response to that challenge would reveal a stark gap between professed ideals and institutional practice.

⁵Ellen W. Schrecker, *The Age of McCarthyism: A Brief History with Documents*, 3rd ed. (Boston: Bedford/St. Martin's, 2002), 1–15.

⁶Richard Hofstadter and Walter P. Metzger, *The Development of Academic Freedom in the United States* (New York: Columbia University Press, 1955), 468–480.

Key Legislation and Investigating Bodies

On March 21, 1947, President Truman signed Executive Order 9835, creating a federal employee loyalty program historians recognize as the precursor to the broader assault on academics.⁷ The McCarran Internal Security Act of 1950 further increased the government's investigatory powers by requiring communist organizations to register with the Attorney General. At the state level, investigating committees proliferated: California's Tenney Committee, New York's Rapp-Coudert Committee, and similar committees in Washington, Illinois, and Ohio all focused specifically on educators.⁸ This legislative and investigative infrastructure established the mechanisms by which McCarthyism could reach directly into the classrooms of the universities. The central question was whether universities would resist such encroachments in the name of academic freedom or capitulate to them—and as historian David Caute documented, the answer was overwhelmingly the latter.⁹

Loyalty Oaths and Faculty Purges

The imposition of loyalty oaths at public universities forced faculty members to choose between their convictions and their careers, and some of the nation's most distinguished scholars were dismissed, creating a climate of fear that stifled freedom of inquiry throughout American academia. Between 1949 and 1953, over two dozen states enacted loyalty oath laws requiring public employees, including university professors, to pledge that they were neither members of the Communist Party nor of any organizations with which the Party associated. The most dramatic confrontation was at the University of California. In March 1949, the UC Board of Regents adopted its own loyalty oath for all university employees, which went further than what

⁷Harry S. Truman, Executive Order 9835, "Prescribing Procedures for the Administration of an Employees Loyalty Program," March 21, 1947.

⁸Schrecker, *No Ivory Tower*, 75–83; David Caute, *The Great Fear: The Anti-Communist Purge Under Truman and Eisenhower* (New York: Simon & Schuster, 1978), 403–430.

⁹Caute, *Great Fear*, 403.

was then being considered by California's state legislature. When a large number of the faculty refused to sign on principle, the Board voted on June 23, 1950, to dismiss 157 employees—a number eventually reduced to thirty-one tenured professors who upheld their refusal on grounds of academic freedom.¹⁰



Figure 2. University of California officials examine the loyalty oath, ca. 1950. Source: FoundSF, “UC Berkeley: The Loyalty Oath Controversy, 1949–51.”

https://www.foundsf.org/UC_Berkeley:_The_Loyalty_Oath_Controversy,_1949-51.

The UC loyalty oath crisis was, as the sociologist Bob Blauner (2009) documented, the single most devastating academic purge in American history. Of the sixty-nine professors dismissed across the nation for political reasons during the McCarthy era, Blauner found that almost half came from the University of California system alone.¹¹ The dismissals depleted Berkeley's faculty: almost fifty more professors resigned in protest, including the eminent psychoanalyst Erik Erikson and the physicist Wolfgang Panofsky. In April 1951, the California

¹⁰Bob Blauner, *Resisting McCarthyism: To Sign or Not to Sign California's Loyalty Oath* (Stanford, CA: Stanford University Press, 2009), 1–25.

¹¹Blauner, *Resisting McCarthyism*, 8.

District Court of Appeal reversed the dismissals in *Tolman v. Underhill*, ruling the oath unconstitutional—but by this time, the damage to careers and institutional reputation was done.¹²

The chilling effect extended far beyond those who were actually dismissed. Columbia sociologists Paul F. Lazarsfeld and Wagner Thielens Jr. conducted the sole large-scale empirical study of McCarthyism's psychological impact on academia. Their 1958 survey covered 2,451 social science faculty at 165 colleges and universities. Lazarsfeld and Thielens found that nine percent of respondents admitted to moderating their written work for fear of controversy. The study identified 990 incidents of political pressure, about 100 of which ended in termination. Faculty reported staying away from controversial topics in lectures, eliminating assigned readings from their syllabi, and refusing to join organizations that might invite suspicion—even when those organizations were entirely legal.¹³ The mere possibility of investigation was enough to change the intellectual behavior of thousands of scholars who were never called to testify before any committee. Moreover, Lazarsfeld and Thielens found that professors at more prestigious institutions reported more administrative pressure, which led them to conclude that what was being eroded was the quality of American college education itself.¹⁴

Senator McCarthy himself was formally censured by the Senate in December 1954, and his personal political power collapsed soon afterward. Yet the machinery he had helped build in higher education outlasted him by more than a decade: McCarthyism survived McCarthy. In 1964, English instructor Harry Keyishian and four colleagues at the University of Buffalo refused to sign the Feinberg Certificate, which required faculty at New York public institutions to attest that they were not members of the Communist Party. Keyishian's contract was not

¹²*Tolman v. Underhill*, 229 P.2d 447 (Cal. App. 1951); Blauner, *Resisting McCarthyism*, 190–195.

¹³Paul F. Lazarsfeld and Wagner Thielens Jr., *The Academic Mind: Social Scientists in a Time of Crisis* (Glencoe, IL: Free Press, 1958), 35, 192–220.

¹⁴Lazarsfeld and Thielens, *Academic Mind*, 166; Hans-Bredow-Institut, “Paul Lazarsfeld and the Limited Effect of McCarthyism on the Academic Mind,” *International Journal of Communication* 16 (2022): 646–654.

renewed. His colleague Ralph Maud, another non-signer, condemned the oath as unduly vague and a demoralizing invasion of privacy.¹⁵ The very vagueness of the oaths acted as a weapon: professors could not know exactly what beliefs or associations might disqualify them, promoting the widest possible self-censorship. That refusal to sign meant automatic termination, regardless of actual political affiliation, speaks volumes on how the oaths were instruments of ideological conformity rather than security measures. Loyalty oaths were the most universal means of McCarthyist repression, tightly enforced in more than two dozen states, and the dismissals, resignations, and self-censorship that they induced impoverished American intellectual life for a generation.

Congressional Investigations and the Targeting of Academics

Congressional investigating committees, especially the House Un-American Activities Committee, targeted university professors with public interrogations designed to force them either to inform on colleagues or face professional destruction, creating an atmosphere in which political association was more dangerous than any idea a professor might teach. In 1949, HUAC held hearings into allegedly communist subversion of the Radiation Laboratory and the atomic bomb project at the University of California, Berkeley. Scientists and faculty members who had worked on the Manhattan Project were queried about their political affiliations—not about any espionage or security breach, but about whether, in previous years or even decades earlier, they had attended meetings of left-wing organizations or belonged to specific study groups. In the 1930s, Depression-era desperation and the rise of European fascism made left-wing organizations and Popular Front causes broadly appealing to American intellectuals with no subversive intent, as Schrecker and other historians have emphasized. The transcripts show a

¹⁵“Background—Keyishian v. Board of Regents,” Research Guides, University at Buffalo Libraries; Marjorie Heins, *Priests of Our Democracy: The Supreme Court, Academic Freedom, and the Anti-Communist Purge* (New York: NYU Press, 2013), 187–210.

consistent pattern of guilt by association: witnesses were pressured to identify colleagues who had attended the same meetings regardless of whether the activities had anything to do with classified research.¹⁶ These hearings set a pattern repeated throughout the McCarthy era—investigators did not pursue actual security threats but instead sought confessions and names of associates. Faculty faced an impossible choice: cooperate and betray their colleagues, or refuse and invite contempt citations or the “unfriendly witness” label that usually resulted in dismissal.

Ellen Schrecker, the foremost historian of McCarthyism in academia, argued in *No Ivory Tower* that McCarthyism operated through what she termed a two-stage process: government committees identified the objectionable people, and the universities themselves administered the punishment—almost always dismissal. Schrecker found that hundreds of professors were summoned before HUAC and other investigating committees, and that faculty who refused to cooperate were usually fired even when they had tenure. An unofficial but effective blacklist ensured that most dismissed professors could not find regular college teaching jobs in the United States until the 1960s. Crucially, these purges were not limited to a handful of controversial institutions: They took place at Ivy League schools, state universities, and small private colleges alike, and would never have occurred without external government pressure.¹⁷

The human cost of resistance is seen with particular clarity in the case of Chandler Davis. As described in the Introduction, Davis stood before Clardy's subcommittee in Lansing in May 1954 and refused to cooperate on First Amendment grounds rather than invoking the Fifth. Steve Batterson's biography documents the aftermath in detail: Davis told a University of Michigan

¹⁶U.S. Congress, House, Committee on Un-American Activities, *Hearings Regarding Communist Infiltration of Radiation Laboratory and Atomic Bomb Project at the University of California, Berkeley*, 81st Cong., 1st sess. (Washington, DC: Government Printing Office, 1949).

¹⁷Schrecker, *No Ivory Tower*, 9–10, 339.

faculty panel that he reserved the right to follow his own thinking and that political liberty mattered far more to him than his university position.¹⁸ The faculty committee found him guilty of “deviousness” and voted unanimously to dismiss him. Davis's case exposes several important dynamics. His First Amendment objection—arguably the constitutionally correct position, vindicated by the courts decades later—was punished rather than protected by his own university. Schrecker characterized Davis as “the quintessential anti-authoritarian personality.”¹⁹ His ordeal is Schrecker's two-stage process in its purest form: HUAC identified him, and the University of Michigan carried out the punishment. McCarthyism in higher education depended on precisely this institutional failure—universities actively surrendering the academic freedom they were supposed to defend.

Administrative Complicity and Institutional Capitulation

Rather than defending their faculty against political interference, university administrators overwhelmingly cooperated with McCarthyist investigations, prioritizing institutional reputation and government funding over the principles of academic freedom they were entrusted to protect. In March 1953, a committee of thirty-seven presidents of the nation's most prestigious universities, including Grayson Kirk of Columbia, Nathan Pusey of Harvard, and A. Whitney Griswold of Yale, issued a collective statement on academic freedom and the Cold War. Despite its title, the manifesto effectively endorsed the investigating committees' premises. It declared free enterprise essential to intellectual as well as economic advancement and insisted that university faculty were obligated to cooperate with congressional investigations. Most damningly, the statement warned that invoking the Fifth Amendment placed upon a professor a heavy burden of proof of his fitness to hold a teaching position, and laid upon his

¹⁸Chandler Davis, quoted in Joan W. Scott, “Horace Chandler Davis, 1926–2022,” *Academe Blog*, October 8, 2022; Batterson, *Prosecution of Professor Chandler Davis*, 78–95.

¹⁹Schrecker, *No Ivory Tower*, 242.

university an obligation to reexamine his qualifications.²⁰ As Schrecker observed, not a single university president in the country publicly protested the government's intrusions into academic life.²¹ This statement amounts to conclusive evidence of institutional failure at the highest levels. The presidents of America's most elite universities—those best positioned to resist political pressure—effectively informed investigating committees that universities would do the enforcement on their behalf. The erroneous application of free-enterprise logic to intellectual life exposes the fact that administrators were not simply acquiescing but actively aligning their institutions with Cold War orthodoxy. That the exercise of a constitutional right could be pronounced grounds for professional suspicion is a serious repudiation of the principle that intellectual inquiry should be independent of political ideology.

President Robert Gordon Sproul of the University of California himself called for a loyalty oath as a preemptive measure in 1949. The California Committee on Un-American Activities, headed by state senator Jack B. Tenney, had threatened to cut the university's budget unless it addressed its alleged communist menace. When the California District Court of Appeal finally overturned the resulting dismissals in *Tolman v. Underhill* in April 1951, the legal process had extended over two years during which careers were already destroyed and the university's scholarly reputation was still suffering damage.²² Sproul's willingness to administer a preemptive loyalty oath—before any law required it—reveals the combined effect of external threat and administrative psychology: faced with budget reprisals, university leaders did not merely comply but preemptively enforced the investigators' logic. This pattern of anticipatory compliance was

²⁰“The Rights and Responsibilities of Universities and Their Faculties,” statement issued by the Association of American Universities, March 1953, reprinted in Schrecker, *Age of McCarthyism*, 202–206.

²¹Schrecker, *No Ivory Tower*, 187–189.

²²*Tolman v. Underhill*, 229 P.2d 447 (Cal. App. 1951); Blauner, *Resisting McCarthyism*, 160–195.

not peculiar to California, and it failed on its own terms. Each concession, rather than appeasing the investigators, appeared to create room for additional demands.

In New York City, the Board of Higher Education used Section 903 of the City Charter to terminate any teacher who invoked the Fifth before a congressional investigating committee. In October 1952, three New York municipal college professors were dismissed for refusing to testify before the Senate Internal Security Subcommittee. At the University of Buffalo, philosophy professor William Parry was summarily terminated in 1953 for refusing to cooperate with HUAC. Education scholars Charles F. Howlett and Audrey Cohan concluded that the injury to intellectual freedom was serious and that the repression of freedom of inquiry was a ruinous blow to the academic profession.²³ The New York cases demonstrate the geographical scope of the purges. The Board of Higher Education's automatic termination policy was especially egregious because it turned the exercise of a constitutional right into grounds for dismissal. Administrative complicity was the key to making McCarthyism work in higher education: investigating committees could not fire professors without administrative cooperation, and the willingness of administrators to capitulate exposed a fundamental contradiction between their institutions' stated mission and their actual conduct.

Justifications for Anti-Communist Probes in Higher Education

Defenders of the anti-communist investigations claimed that the threat of Soviet infiltration was real, that the universities were charged with a special duty to ensure that their faculties remained free from agents of a hostile power, and that membership in the Communist Party was incompatible with the freedom of inquiry that academic life required. The most sophisticated defense came from Sidney Hook, a New York University philosopher and former

²³Charles F. Howlett and Audrey Cohan, "Loyalty Oaths and Academic Witch Hunts," *Faculty Works: EDU* (1995–2023), no. 26 (Molloy College, 2008), 15.

1930s Marxist turned prominent Cold War anti-communist. In his influential 1953 book *Heresy, Yes—Conspiracy, No*, Hook drew a sharp distinction between "heresy"—the holding of unpopular or heterodox ideas, which he insisted must be protected—and "conspiracy," which he defined as membership in an organization that called for ideological obedience and served a foreign power. Hook argued that the Communist Party imposed a discipline incompatible with scholarly inquiry. "What is relevant," he wrote, "is that their conclusions are not reached by a free inquiry into the evidence. To stay in the Communist Party they must believe and teach what the party line decrees." Party members had therefore surrendered their fitness as professors. By this logic, however, membership in any ideologically committed organization—a devout Catholic bound by Church doctrine, for example, or even a loyal AAUP member—could in principle disqualify a scholar, which suggests the criterion was both arbitrary and impossible to administer consistently.²⁴

Hook's argument is one that should be taken seriously. The Communist Party did urge its members to follow the party line—as the abrupt Communist Party USA reversal from anti-fascism to non-intervention during the Nazi-Soviet Pact of 1939–1941 attests.²⁵ In practice, however, Hook's distinction was disastrous. As Schrecker showed, the vast majority of targeted professors were former members who had long since left the party, or people whose only offense had been to attend meetings during the 1930s—when, as noted above, economic desperation and anti-fascist politics made Popular Front organizations broadly appealing to Americans who had no revolutionary intentions. The investigations made no distinction between active conspirators and individuals who had merely associated with left-wing groups even decades earlier. The

²⁴Sidney Hook, *Heresy, Yes—Conspiracy, No* (New York: John Day Company, 1953), 21–40; discussed in Schrecker, *No Ivory Tower*, 91–95.

²⁵Maurice Isserman, *Which Side Were You On? The American Communist Party During the Second World War* (Middletown, CT: Wesleyan University Press, 1982), 35–54; Harvey Klehr, *The Heyday of American Communism: The Depression Decade* (New York: Basic Books, 1984), 386–409.

Supreme Court would later reject exactly this guilt-by-association logic in *Keyishian* (1967), holding that political association alone could not disqualify a scholar from public employment.

The espionage cases proved that the Soviets had recruited Americans in sensitive positions. Klaus Fuchs was convicted of handing nuclear designs to the Soviet Union. Julius Rosenberg was executed in 1953 for espionage. The Venona decrypts, declassified in 1995, showed that hundreds of Americans had worked for Soviet intelligence, some of them with academic affiliations.²⁶ However, the real espionage cases involved a small number of people working in narrowly defined classified programs—not the vast majority of professors of the humanities and social sciences whom the McCarthyist investigations targeted. The investigations did not stop with those researchers who had security clearances; they extended to literature professors, historians, philosophers, and mathematicians whose work was far removed from classified research. As Clay Risen argued in *Red Scare* (2025), a few genuine espionage cases were used as a pretext to justify a wholesale assault on left-leaning academics.²⁷

Others argued that professors who invoked the Fifth Amendment were, by refusing to answer questions, tacitly admitting guilt. This position was echoed in the 1953 statement of the thirty-seven university presidents and articulated by the University of Michigan's president Harlan Hatcher, who demanded that faculty demonstrate complete candor about their political views as a condition of employment.²⁸ This argument inverted one of the basic principles of American law: the right against self-incrimination exists precisely so that citizens cannot be compelled to testify against themselves, and its exercise was never meant to be an admission of guilt. Since the overwhelming majority of those targeted were public employees at state

²⁶Fried, *Nightmare in Red*, 24–28; Ellen W. Schrecker, *Many Are the Crimes: McCarthyism in America* (Boston: Little, Brown and Company, 1998), 178–190.

²⁷Clay Risen, *Red Scare: Blacklists, McCarthyism, and the Making of Modern America* (New York: Scribner, 2025), 312–315.

²⁸“Rights and Responsibilities of Universities,” 1953; Batterson, *Prosecution of Professor Chandler Davis*, 80–82.

universities or municipal colleges, the constitutional stakes were especially clear: the state cannot condition public employment on the surrender of rights that the Constitution guarantees. This position was emphatically refuted by the Supreme Court in *Keyishian v. Board of Regents* (1967), when the majority ruled that public employment could not be conditioned upon the surrender of constitutional rights that could not be abridged by direct government action.²⁹ Even granting that the threat of Soviet espionage was real, the response in higher education was grossly disproportionate, overwhelmingly directed at individuals innocent of any wrongdoing, and ultimately destructive rather than protective of American democratic institutions.

Consequences, Legal Legacy, and Long-Term Impact

The McCarthy era's assault on academic freedom had long-term consequences for American higher education, but also provoked a legal and institutional backlash that ultimately strengthened constitutional protections for academic freedom—although the scars of the period lingered for decades. In *Sweezy v. New Hampshire* (1957), the Supreme Court sided with Paul Sweezy, a Marxist economist whom the New Hampshire attorney general had summoned to answer questions about the content of his university lectures. When Sweezy refused to answer, he was held in contempt. The Supreme Court overturned his conviction, with Chief Justice Warren stressing that “scholarship cannot flourish in an atmosphere of suspicion and distrust.”³⁰ *Sweezy* was the first case in which the Supreme Court identified the constitutional dimensions of academic freedom, holding that the government could not interrogate professors about their teaching without compelling justification.

A decade later, the Supreme Court issued a more definitive rejection of McCarthy-era loyalty oaths in *Keyishian v. Board of Regents* (1967). In the landmark five-to-four ruling, the

²⁹*Keyishian v. Board of Regents*, 385 U.S. 589, 605–606 (1967), Justice William Brennan, majority opinion.

³⁰*Sweezy v. New Hampshire*, 354 U.S. 234, 250 (1957), Chief Justice Earl Warren, plurality opinion.

Court invalidated New York's Feinberg Law and its loyalty oath requirements for educators. Justice William Brennan, writing for the majority, declared that academic freedom “is of transcendent value to all of us” and a “special concern of the First Amendment, which does not tolerate laws that cast a pall of orthodoxy over the classroom.”³¹ Legal scholar Marjorie Heins has argued that *Keyishian* represented the definitive constitutional repudiation of McCarthy-era loyalty oaths in education.³² By elevating academic freedom to a special concern under the First Amendment, the Court developed a framework for protecting professors from future political purges. Nevertheless, this vindication came nearly twenty years too late for those scholars whose careers were destroyed.

The AAUP's 1956 report on academic freedom and tenure documented the harmful effects of the McCarthy era and set out principles against political interference with faculty. In the years that followed, the AAUP strengthened procedural protections surrounding tenure and academic due process. The foundational 1940 Statement of Principles on Academic Freedom and Tenure was reaffirmed and elaborated with interpretive commentary in 1970 and became the model for faculty governance at virtually all American universities.³³ According to legal scholar David M. Rabban, it was precisely because of the damage of the McCarthy era that the transformation of academic freedom from a professional norm to a constitutional right occurred.³⁴ One of the ironic legacies of the McCarthy era is thus the institutional restructuring that followed it: the assault on academic freedom ultimately enhanced the official safeguards that protect it. The tenure system was strengthened, faculty governance was enhanced, and the

³¹*Keyishian*, 385 U.S. at 603.

³²Heins, *Priests of Our Democracy*, 210–235.

³³American Association of University Professors, “Academic Freedom and Tenure in the Quest for National Security,” *AAUP Bulletin* 42, no. 1 (Spring 1956): 49–107; Henry Reichman, *The Future of Academic Freedom* (Baltimore: Johns Hopkins University Press, 2019), 35–60.

³⁴David M. Rabban, *Academic Freedom: From Professional Norm to First Amendment Right*. (Cambridge, MA: Harvard University Press, 2024), 112–145.

principles of the AAUP became embedded in mainstream university policy. These structural improvements could not, however, correct the intellectual damage of the period. As Schrecker documented, entire intellectual traditions—Marxist economics, critical sociology, and radical political theory—lost a generation of practitioners whose work was never written.³⁵

Conclusion

Returning to that Lansing courtroom in 1954, Davis's ordeal captures the full machinery of McCarthyism in higher education: the loyalty climate of the era, the congressional committee that interrogated him, and the university administration that dismissed him rather than defend his rights. His case stands for hundreds whose careers were ended by the same apparatus. As this paper has shown, the anti-communist purges of 1947–1957 operated through Schrecker's two-stage process in which government investigating bodies identified targets, and universities became compliant enforcement arms of the state.³⁶ Loyalty oaths imposed in more than twenty states made political conformity a precondition of employment, undermining scholarly merit as the standard by which professors were judged. Congressional investigations forced faculty to choose between betraying their colleagues and losing their careers. University administrators, from the presidents of the nation's most elite institutions to the boards of municipal colleges, overwhelmingly chose capitulation over principle. The direct dismissals were only the visible wound: the deeper damage was the culture of self-restraint that settled over American higher education for a generation. The paradox of this history is that McCarthyism's assault on academic freedom ultimately strengthened the legal framework protecting it. The Supreme Court's rulings in *Sweezy* and *Keyishian* elevated academic freedom to special constitutional status, and the AAUP's post-McCarthy reforms institutionalized enhanced protections in

³⁵Schrecker, *No Ivory Tower*, 339; see also Schrecker, *Many Are the Crimes*, 402–414.

³⁶Schrecker, *No Ivory Tower*, 9–10, 339.

university governance. However, this vindication came too late for the generation whose careers were destroyed.

Yet this history is no longer only historical. Seventy years after Davis stood in that Lansing courtroom, American universities face a new version of the same structural assault. In October 2025, the White House offered nine universities preferential federal research-funding access through its “Compact for Academic Excellence in Higher Education,” requiring signatories to adopt “institutional neutrality” limiting employee speech on societal and political events unless those events affect the university.³⁷ Beginning in spring 2025, billions in federal grants were frozen or terminated at Columbia, UPenn, Princeton, Brown, Northwestern, Harvard, and Cornell—ranging from \$175 million at UPenn to over \$2.2 billion at Harvard—typically conditioned on acceptance of demands covering governance, hiring, and curriculum.³⁸ Columbia, UPenn, and Brown settled; Harvard and Cornell sued; Carnegie Mellon joined the Association of American Universities in suing to block National Institutes of Health's indirect-cost cap, which its president said posed “existential challenges” to Carnegie Mellon's research mission.³⁹ Several institutions, including Brown, have cancelled doctoral programs in the humanities and social sciences they can no longer afford.⁴⁰ The parallels to McCarthyism are unmistakable—not only in the political pressure on universities, but in the compounding damage to American scholarship: research halted, graduate training curtailed, entire fields weakened by the withdrawal of federal support. Worse still, the tenure protections McCarthyism's aftermath produced have themselves eroded. By 1969, roughly fifty-one percent of faculty were tenured;

³⁷Brandie M. Nonnecken et al., “White House Looks to Seize Control of Higher Education Policy Through ‘Compact for Academic Excellence in Higher Education,’” Steptoe Client Alert, October 23, 2025.

³⁸Lauren Camera, “The Biggest Developments in Higher Education Policy in 2025,” *U.S. News & World Report*, January 2, 2026.

³⁹Laura Spitalniak, “Carnegie Mellon Lays Off 75 Employees at Engineering Institute amid Federal Funding Shifts,” *Higher Ed Dive*, October 10, 2025.

⁴⁰Camera, “Biggest Developments in Higher Education Policy.”

by 2023, only thirty-two percent of instructional faculty hold tenure or tenure-track appointments,⁴¹ leaving most scholars without the job security dissent requires. Taken together, these developments suggest American higher education now faces a structural challenge comparable to McCarthyism—with fewer institutional defenses to meet it.

The era of McCarthyism revealed that academic freedom is not self-enforcing: it must be actively defended by administrators, faculty organizations, and the courts, and its erosion persists long after the crisis that precipitated it. In the present climate of renewed political pressure on universities, that lesson is the enduring relevance of McCarthyism, and the historical record suggests it is a harder test than most institutions are prepared to pass.

⁴¹American Association of University Professors, "Data Snapshot: Tenure and Contingency in US Higher Education, Fall 2023," *Academe* 111 (Spring 2025).

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Postscript

When I was starting this project, I planned on writing about a political bully and the professors who stood up to him. What I found was more disturbing. The story of McCarthyism in higher education is not primarily a story about Senator McCarthy at all—it is a story about institutions betraying their own ideals. The fact that really jumped out at me was the 1953 statement by thirty-seven university presidents, including the leaders of Harvard, Yale, and Columbia that said in effect to Congress that they would do the dismissal for them. These were supposed to be the defenders of free inquiry, and they did not put up a fight.

Researching the case of Chandler Davis changed for me the way I think about what it costs to stand by your principles. Davis was a mathematician whose work had nothing to do with national security, but he lost his career and his country for refusing to answer questions that he thought no government had the right to ask. That the University of Michigan eventually honored him with a series of lectures named after him seems less like redemption than an admission of guilt decades overdue.

This paper also had me thinking about self-censorship in ways that I haven't before. Lazarsfeld and Thielens discovered that nine percent of professors admitted to watering down their writing for fear of controversy, and that was probably an undercount. The best repression doesn't even need to fire people—it just needs to make them afraid enough to silence themselves. Writing the final draft as news broke about federal funding threats against Columbia, Harvard, and other universities—and as Carnegie Mellon, a short drive away in Pittsburgh, warned of “existential challenges” to its research mission—I found the material taking on a more immediate weight than I expected at the start of the project. As someone who will attend a university next year, I find the lesson uncomfortably relevant. The question McCarthyism raises

is not so much whether we believe in academic freedom in the abstract, but whether we are willing to stand up for it when the cost is real. The historical record suggests this is a harder test than most institutions—and most people—are prepared to pass.